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## Appeal Decision

Site visit made on 12 May 2026

**by K Reeves BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

**Decision date: 19 June 2026**

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### **Appeal Ref: 6004999**

### **124 Cheltenham Road, Bishops Cleeve, Cheltenham, Gloucestershire GL52 8LZ**

- The appeal is made under Section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Mr James Edwards against the decision of Tewkesbury Borough Council.
  - The application Ref is 25/00855/FUL.
  - The development proposed is construction of a new detached single storey 3-bedroom 'self and custom build' dwelling and construction of a detached single storey car port with access driveway and vehicular parking.
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### **Decision**

1. The appeal is dismissed.

### **Main Issues**

2. The main issues are:
  - the effect of the proposed development on the character and appearance of the area;
  - whether the proposal would provide acceptable living conditions for future occupiers of the proposed dwelling, having particular regard to the size of Bedroom 3; and
  - whether adequate mitigation is secured to address recreational disturbance impacts on the Cotswold Beechwoods Special Protection Area (SAC)

### **Reasons**

#### *Character and appearance*

3. The character of this part of Cheltenham Road is defined by substantial detached dwellings set within generous plots, with long rear gardens extending behind the built frontage. This produces a clear and spacious pattern in which built form is experienced almost entirely as frontage development, and the depth of the rear gardens contributes strongly to the area's open and coherent character.
4. The appeal site comprises the rearmost portion of the garden of No.124, together with a narrow strip extending behind Nos.120 and 122. This creates a parcel of land that extends beyond the established depth of development along Cheltenham Road and projects noticeably deeper than the prevailing pattern of built form on this side of the road. A dwelling in this position would not reflect the characteristic arrangement of long, uninterrupted rear gardens. Rather, it would introduce built form into an area that currently functions as part of the open rear-garden setting to

surrounding properties, thereby eroding the spacious and open qualities that define the rear gardens along this section of Cheltenham Road.

5. The proposal would be reached via a narrow access between Nos.122 and 124, leading to a single-storey, flat-roofed dwelling and car port positioned behind the existing frontage buildings. The combination of the narrow access, the depth of the site and the internal arrangement of the dwelling, car port and hardstanding would result in a layout that appears engineered to fit the confines of the plot rather than arising naturally from its context. The close juxtaposition of built elements around a small forecourt would give the development a contrived and cramped character, at odds with the more generous and outward-facing pattern of surrounding plots.
6. The appellant highlights the contemporary design, flat roof form and limited visibility of the proposal. However, these factors do not overcome the fundamental concern, which is that the site parameters, siting and internal layout would introduce a contrived and cramped arrangement of built form into a location where development does not naturally occur, conflicting with the established pattern and spacious character of the area.
7. The appellant also refers to the approved dwelling at 118 Cheltenham Road. However, that development sits within, and effectively rounds off, the established built form of the adjoining estate, aligning with the depth and orientation of plots in that enclave. By contrast, the appeal proposal would introduce a deeper, second tier of development behind long rear gardens, where no comparable built form exists. The two sites are therefore not comparable, and the permission at No.118 does not alter the established spatial character of this part of Cheltenham Road.
8. For these reasons, the proposal would cause unacceptable harm to the character and appearance of the area. Consequently, it conflicts with Policy SD4 of the Gloucester, Cheltenham and Tewkesbury Joint Core Strategy 2011 – 2031 and Policy RES5 of the Tewkesbury Borough Plan 2011 – 2031 (TBP), which set out that development should achieve context-led, high-quality design that fits the scale, form and materials of its surroundings, integrates smoothly with the settlement pattern and avoids visual intrusion or suburbanising effects, ensuring a clear and coherent sense of local character.

#### *Living conditions*

9. The Council's second refusal reason concerns the size of Bedroom 3. The Council maintains that the room would be substantially below the minimum width of 2.15 metres required by the Government's nationally described space standards for a single bedroom.
10. The submitted floor plan includes a single bed drawn at realistic proportions in Bedroom 3. Using the typical width of a single bed as a reference point provides a straightforward and reliable indication of the room's proportions. When this is done, it is evident that the room is appreciably wider than the Council suggests, with the bed occupying less than half of the room's width.
11. Given the proportions shown, it is likely that the room meets or exceeds the 2.15-metre minimum width for a single bedroom. The Council has not provided sufficient evidence to demonstrate that the room would fall below that standard, and the proportions depicted on the plan do not support that conclusion. I am

therefore satisfied that Bedroom 3 provides a space of appropriate proportions for its intended use.

12. For these reasons, the proposal would provide acceptable living conditions for future occupiers of the proposed dwelling, having particular regard to the size of Bedroom 3. Consequently, it complies with Policy DES1 of the TBP, which requires all new residential development to meet the Government's nationally described space standards as a minimum.

### *Cotswold Beechwoods SAC*

13. The appeal site lies within the Zone of Influence for the Cotswold Beechwoods SAC. This is a European-designated site of the highest level of ecological protection. It comprises extensive areas of ancient beech woodland, supporting characteristic assemblages of flora and fauna associated with long-established calcareous woodland.
14. The SAC already experiences significant visitor pressure from nearby settlements. Natural England's evidence, which underpins the Council's mitigation strategy, demonstrates that even modest additional residential development within the Zone of Influence adds cumulatively to recreational use, resulting in adverse effects arising from increased recreational pressure.
15. The proposal would introduce an additional dwelling within this Zone of Influence. Although modest in scale, the Conservation of Habitats and Species Regulations 2017 require that any development resulting in a net increase in population must be assessed for its potential to contribute, alone or in combination with other plans and projects, to adverse effects on the SAC. The threshold for requiring mitigation is therefore low, and the obligation applies irrespective of the size of the scheme.
16. The Council's adopted approach is to secure mitigation through a financial contribution or other mechanism set out in the Cotswold Beechwoods SAC Mitigation Strategy. Without such mitigation, the competent authority cannot lawfully conclude that the proposal would avoid adverse effects on the integrity of the SAC.
17. The appellant indicates a willingness to enter into a Unilateral Undertaking to secure the necessary mitigation, but no completed obligation has been submitted. In the absence of a secured and scientifically validated mitigation package, I am unable to ascertain that the proposal would avoid adverse effects on the integrity of the Cotswold Beechwoods SAC.
18. As the competent authority, I must consider whether the development is likely to have a significant effect on the SAC, either alone or in combination with other plans or projects. On the evidence before me, I cannot rule out such effects. The proposal therefore fails to satisfy the requirements of Regulation 63, and it conflicts with Policy NAT5 of the TBP, which requires development that may affect a SAC to demonstrate that it will not give rise to adverse effects on site integrity. Where likely significant effects cannot be excluded, the policy makes clear that mitigation must be secured, and permission must be refused if adverse effects remain.

### **Planning Balance**

19. The Council accepts it cannot demonstrate a five-year housing land supply. In these circumstances, Paragraph 11(d)(i) of the National Planning Policy

Framework (the Framework) states that permission should be granted unless the application of policies in the Framework that protect areas or assets of particular importance provide a strong reason for refusing the development, having regard to footnote 7. This includes areas designated as habitats sites, including SACs and SPAs.

20. As has already been established, I cannot conclude, in the absence of a completed obligation, that the development would avoid adverse effects on the integrity of the Cotswold Beechwoods SAC. Accordingly, the habitats and biodiversity policies in the Framework provide a strong reason for refusing the development proposed. Paragraph 11(d)(ii) is not therefore engaged.
21. The appellant identifies several benefits. These include the provision of a single additional dwelling in a sustainable location, a contribution to local housing supply, the delivery of a self-build home, and the economic activity associated with construction. The appellant also refers to the efficient use of land, the contemporary and energy-efficient design of the dwelling, and the potential for minor biodiversity enhancements within the site. Overall, the combined benefits attract limited to moderate weight given the modest scale of the scheme.
22. In addition, the appellant highlights personal benefits associated with the opportunity to construct a bespoke home tailored to their needs and circumstances. While I have taken these personal benefits into account, they attract only limited weight as they do not amount to public benefits in planning terms.
23. Set against these benefits are the significant harms identified earlier in this decision. The proposal would cause unacceptable harm to the character and appearance of the area. It would also fail to secure the necessary mitigation for the Cotswold Beechwoods SAC. These conflicts with the development plan attract substantial weight. The acceptable internal living conditions are a neutral factor.
24. Taking all matters into account, the benefits advanced by the appellant, including the personal benefits, do not outweigh the identified harms or the clear conflict with the development plan.

## **Conclusion**

25. Article 8 of the European Convention on Human Rights, as enshrined in the Human Rights Act 1998, affords the right to respect for private and family life, while Article 1 of the First Protocol concerns the peaceful enjoyment of possessions. I have also had due regard to the Public Sector Equality Duty (PSED) in Section 149 of the Equality Act 2010, as the evidence shows that the appellant's parents have age-related needs, and age is a protected characteristic.
26. The parents are now at an age where they increasingly depend on timely, day-to-day support. The considerable distance between the two households constrains the appellant's ability to provide such assistance, with consequences for the parents' capacity to continue living independently within their long-established home and community.
27. The proposed development would facilitate closer proximity and more responsive support, strengthening the family's ability to maintain private and family life.

However, I am not satisfied that this outcome can only be achieved through the specific development proposed.

28. Dismissing the appeal would interfere with the family's rights under Article 8 and Article 1 of the First Protocol. These are qualified rights, and an interference may be justified where it is in accordance with the law and in the public interest. In this case, any interference would be lawful and would pursue legitimate and well-established planning aims. Having had due regard to the PSED and the age-related circumstances of the occupiers, I find that dismissing the appeal would be necessary and proportionate.
29. For the reasons given above, the proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Accordingly, the appeal should be dismissed.

*K Reeves*

INSPECTOR